

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**Index No.:
Date Purchased: 1/29/15
SUMMONS**ABDULLAH MUHAMMAD,**

Plaintiffs,

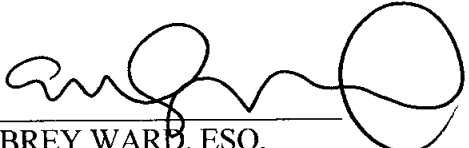
-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MATTHEW HUGHES,
P.O. BRADLEY KUCYK, P.O. ROBERT UHL,
LIEUTENANT THOMAS KELLY, and P.O. JOHN
DOES 1-5** (the last Officers' names being fictitious and
presently unknown),

Defendants

Plaintiffs designate
Bronx County as the
Place of trial.*The basis of venue is:*
Plaintiffs' ResidencePlaintiffs reside at:
1060 Anderson Avenue, #4E
Bronx, NY 10452
*County of Bronx***To the above named Defendant:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
December 24th, 2015
AUBREY WARD, ESQ.*Attorney for Plaintiff*
Abdullah Muhammad
400 East 161st Street
Bronx, New York 10451
Ph: (718) 676-6033
Fx: (718) 676-60342015 DEC 29 PM 4:06
COUNTY CLERK
BRONX COUNTY

RECEIVED

TO: Scott M. Stringer
Office of the New York City Comptroller
1 Centre Street
New York, New York 10007

New York City Police Department
One Police Plaza
New York, New York 10038

POLICE OFFICER MATTHEW
(Address currently unknown)

POLICE OFFICER BRADLEY KUCYK
(Address currently unknown)

POLICE OFFICER ROBERT UHL
(Address currently unknown)

LIEUTENANT THOMAS KELLY
(Address currently unknown)

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

_____X Index No.:
ABDULLAH MUHAMMAD,

Plaintiff,

VERIFIED COMPLAINT

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MATTHEW HUGHES,
P.O. BRADLEY KUCYK, P.O. ROBERT UHL,
LIEUTENANT THOMAS KELLY, and P.O. JOHN DOES
1-5 (the last Officers' names being fictitious and presently
unknown),**

Defendants.

_____X

Plaintiff, by his attorney, **AUBREY WARD**, as and for his Verified Complaint,
respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. On April 18, 2015, Defendants, while acting in their capacities as policemen of the City of New York, unlawfully and improperly arrested Plaintiff, used excessive force on Plaintiff, caused Plaintiff to suffer serious and permanent personal injuries, and wrongfully arrested Plaintiff, thereby depriving the Plaintiff of his liberty without due process of law and depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331. Mr. Abdullah Muhammad seeks declaratory relief pursuant to 28 U.S.C. §2201, compensatory and punitive damages for the violation of his civil rights pursuant to 42 U.S.C. §§1981, 1983, 1985 and 1986 and an award of costs, disbursements and attorneys fees under 42

compensatory and punitive damages for the violation of his civil rights pursuant to 42 U.S.C. §§1981, 1983, 1985 and 1986 and an award of costs, disbursements and attorneys fees under 42 U.S.C. §1988. All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to 28 U.S.C. §1367 to hear state law causes of action. As the deprivation of rights complained of herein occurred within the Southern District of New York, venue is proper pursuant to 28 U.S.C. §§ 1391 (b) and (c).

2. The plaintiff, **ABDULLAH MUHAMMAD ("MUHAMMAD")**, at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.

3. At all times mentioned herein, defendants **P.O. MATTHEW HUGHES ("P.O. HUGHES")**, **P.O. BRADLEY KUCYK ("P.O. KUCYK")**, **P.O. ROBERT UHL ("P.O. UHL")**, **LIETENANT THOMAS KELLY ("L.T. KELLY")**, and others not presently known to the plaintiff, were and still are residents of the County of New York and the State of New York.

4. At all times mentioned herein, defendant **P.O. JOHN DOES 1 through 5 ("OFFICERS")**, were residents of the County of New York and the State of New York.

5. At all times herein mentioned, defendant **THE CITY OF NEW YORK ("NYC")**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

6. At all times herein mentioned, the defendant, **THE NEW YORK CITY POLICE DEPARTMENT ("NYPD")**, was and still is a municipal agency, created, organized and existing under and by virtue of the laws of the state of New York.

7. Prior to the commencement of this action, a notice of claim in writing was served on behalf of **MUHAMMAD**, upon **NYC** and **NYPD** in accordance with Section 50-e of the General Municipal Law.

8. That notice of claim was served on June 9, 2015.

9. Within ninety days of (90) of April 18, 2015 a notice of claim in writing was served on behalf of **MUHAMMAD**, upon **NYC** and **NYPD**, in accordance with Section 50-e of the General Municipal Law.

10. Prior to the commencement of this action, notice of the intention of **MUHAMMAD** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the Charter of New York to adjust such claims, was served on behalf of **MUHAMMAD** upon **NYC** and **NYPD**.

11. Although more than thirty (30) days have elapsed since service of such notice of claim, the defendants neglected and have refused to pay said claim or adjust same.

12. A hearing pursuant to General Municipal Law 50-h has been held.

13. At all times herein mentioned, defendants **NYC, P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY, NYPD** and defendant **OFFICERS** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

14. Defendants **NYC** and **NYPD** are vicariously liable for the acts of defendants **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS**.

15. At all times herein mentioned, the defendants **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** **OFFICERS** and **OFFICERS** were police officers employed by the New York City Police Department, and at all times material to there complaint, these

defendants acted toward plaintiff under color of statutes, ordinances, customs and usage of the State of New York, City of New York, County of New York and the New York City Police Department.

16. This action is commenced within one (1) year and ninety (90) days from April 18, 2015, the date of the incident.

17. Plaintiff sues all defendants in their individual capacities.

18. On or about April 18, 2015, Defendant **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY OFFICERS** and **OFFICERS** illegally, unlawfully, willingly, maliciously, and intentionally, without a cause, beat, struck, apprehended, arrested, tortured, verbally abused, used excessive force, searched Plaintiff and detained Plaintiff without cause or justification and violated plaintiffs federal and state civil and constitutional rights.

19. Following the assault, and battery, excessive use of force, and unlawful search and seizure the defendants wrongfully, without any warrant or authority of law arrested the plaintiff and detained him against his will.

20. That the assault, battery, unlawful search and seizure, excessive use of force, arrest was made by the defendants without any warrant and in violation of legal process directing or authorizing the plaintiff's assault, and battery, and unlawful search and seizure or legal detention.

21. That upon information and belief, the assault, battery, unlawful search and seizure and legal detention, and the excessive use of force was the result of Plaintiff's inquiring where his friends, who were being arrested, were being taken. **P.O. KUCYK** and **P.O. UHL** ran towards Plaintiff. **L.T. KELLY** tackled **MUHAMMAD** off his motorcycle. **P.O. KUCYK**,

P.O. UHL, P.O. HUGHES, L.T. KELLY and **OFFICERS** began to beat him causing physical injury to Plaintiff.

22. Plaintiff was arrested and charged with resisting arrest, three counts of assault in the second degree and third degree.

23. That the charges made in the complaint that plaintiff was behaving in a violent tumultuous, and threatening manner is wholly untrue and false.

24. That the Plaintiff made numerous appearances in court and was forced to retain a lawyer. Plaintiff's case was adjourned in contemplation of dismissal and all charges against Plaintiff have since been dismissed.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
VIOLATION OF HIS RIGHT TO BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER THE FOURTH AND FOURTEENTH AMENDMENTS
TO THE UNITED STATES CONSTITUTION**

25. Plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

26. That as a result of the assault, excessive use of force, battery, and false arrest and imprisonment, plaintiff **MUHAMMAD**, being a citizen of the United States, Defendants, individually and/or vicariously subjected Plaintiff to deprivations of his rights, privileges and immunities secured by the Constitution of the United States, and Plaintiff sustained deprivations of his personal liberty, invasions of his privacy, and violations of his civil rights, that include, but are not limited to, Plaintiff's right to be free and secure in his person and to be free from arrest, search and seizure except on probable cause or pursuant to warrant. Plaintiff has suffered and will continue to suffer from psychological harm, physical injury, mental distress, humiliation, embarrassment, fear, and defamation of his character and reputation, was

prevented from attending to his usual duties, all to his damage in the sum of \$10,000,000.00 (TEN MILLION DOLLARS) and exemplary damages in the punitive amount of \$20,000,000.00 (TWENTY MILLION DOLLARS).

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF FOR THE VIOLATION OF HIS RIGHT TO BE FREE
FROM UNREASONABLE FORCE UNDER THE FOURTH AMENDMENT
TO THE UNITED STATES CONSTITUTION**

27. Plaintiff repeats each and every allegation set forth above with the same force and effect as if set forth herein.

28. The amount and type of physical force used upon plaintiff by defendants, individually and/or vicariously, by and through their agents, servants and /or employees, was unnecessary , improper, excessive and not reasonably justified under any circumstances.

29. The amount and type of physical force used upon Plaintiff by Defendants, individually and/or vicariously, by and through their agents, servants and/or employees demonstrated an intentional, willful, malicious and reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

30. The aforementioned use of force caused immediate injury in the form of pain, suffering, bruises, swelling, abrasions, nasal bone fracture, shock, fright, humiliation, embarrassment and deprivation of Plaintiff's constitutional rights.

31. As a result of the foregoing, Plaintiff has been damaged in the amount of damage in the sum of \$10,000,000.00 (TEN MILLION DOLLARS).

**AS AND FOR A THIRD CAUSE OF ACTION FOR FAILURE TO INTERVENE TO
PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

32. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

33. As a result of the above actions, defendants **NYC** and **NYPD**, individually, and/or vicariously, by and through its agents, servants and /or employees and failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff by defendants **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS**.

34. As a result of the foregoing, defendants, **NYC** and **NYPD** individually, and and/or vicariously by and through their agents servants and/or employees, **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS** displayed a deliberate indifference to Plaintiff's rights to be free from unreasonable searches and seizures and excessive use of force.

35. As a result of the foregoing, Defendants **NYC** and **NYPD** individually and/or vicariously by and through its agents servants and/or employees and **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

36. As a result of the foregoing, Plaintiff has been damaged in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S
RIGHT TO BE FREE FROM UNREASONABLE FORCE UNDER ARTICLE ONE,
SECTION TWELVE OF THE NEW YORK STATE CONSTITUTION**

37. Plaintiff repeats and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

38. The amount and type of physical force used upon Plaintiff by Defendants, individually and/or vicariously by and through their agents, servants and/or employees, was unnecessary, improper, excessive and not reasonably justified under any circumstances and deprived Plaintiff of his right to be free from excessive and unreasonable force.

39. The amount and type of force used upon Plaintiff by defendants, individually and/or vicariously, by and through their agents, servants and/or employees, demonstrated an intentional, willful, malicious and reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being

40. The aforementioned use of force caused immediate injury in the form of pain, suffering, bruises, swelling, abrasions, nasal bone fracture, shock, fright, humiliation, embarrassment and deprivation of Plaintiff's constitutional rights.

41. As a result of the foregoing, Plaintiff has been damaged in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE IMPRISONMENT

42. Plaintiff repeats and re-alleges each and every allegation contained in the preceding paragraphs.

43. On or about April 18, 2015 at or around 119th Street between Lenox and 7th Avenues, Defendant **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS** wrongfully, unlawfully, maliciously, and without any warrant or pretense of legal process, imprisoned and confined Plaintiff, depriving Plaintiff of his liberty. Defendants' acts were committed under color of law.

44. Plaintiff was aware of said confinement and did not consent to it.

45. By reason of Defendants' actions, Plaintiff was deprived of his liberty and was otherwise greatly injured.

46. Consequently, Plaintiff has been damaged in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

AS AND FOR A SIXTH CAUSE OF ACTION FOR PRIMA FACIE TORT

47. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs as if fully set forth herein.

48. By tackling, punching Plaintiff in the face, repeatedly physically beating and verbally assaulting Plaintiff while on the ground, Defendants **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS** harmed Plaintiff both physically and mentally.

49. The above acts were willful, outrageous, and without reasonable or probable cause, or justification.

50. Defendants **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS** committed said acts with the deliberate intent of injuring the Plaintiff, and that as a result of these acts, Plaintiff was damaged in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

**AS AND FOR AN SEVENTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

51. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs as if fully set forth herein.

52. By tackling, punching Plaintiff in the face, repeatedly physically beating and verbally assaulting Plaintiff while on the ground, Defendant **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS**, engaged in extreme and outrageous conduct that caused Plaintiff mental and emotional distress.

53. Consequently, Plaintiff was damaged thereby in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

AS AND FOR A EIGHTH CAUSE OF ACTION FOR LOSS OF EMPLOYMENT

54. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs.

55. Defendants **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS** caused, permitted and allowed plaintiff to lose employment and employment opportunities, in that he was no longer able to continue working and was also caused to suffer a decreased likelihood of becoming a police officer because of his arrest. Said Defendants caused, permitted and allowed Plaintiff to suffer mental trauma as a result of their actions.

56. Consequently, Plaintiff was damaged in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

AS AND FOR A NINTH CAUSE OF ACTION FOR BATTERY

57. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs.

58. By tackling, punching Plaintiff in the face, repeatedly physically beating and verbally assaulting Plaintiff while on the ground, Defendants **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS** committed un-permitted harmful and offensive contact upon Plaintiff, committing battery. Said Defendants intended the conduct to cause, plaintiff physical and mental/emotional harm.

59. Defendants' battery upon Plaintiff caused, permitted and allowed Plaintiff to suffer physical, mental and emotional harm.

60. As a result of Defendants' acts, Plaintiff was damaged in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

AS AND FOR AN TENTH CAUSE OF ACTION FOR ASSAULT

61. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs.

62. By tackling, punching Plaintiff in the face, repeatedly physically beating and verbally assaulting Plaintiff while on the ground, Defendants **P.O. HUGHES, P.O. KUCYK, P.O. UHL, L.T. KELLY** and **OFFICERS** committed un-permitted harmful and offensive contact upon Plaintiff, committing battery. Defendants created a reasonable apprehension on Plaintiff with immediate harmful or offensive contact. Defendants intended to create such an apprehension, and caused, permitted and allowed Plaintiff both physical and emotional distress.

63. As a result of Defendants' acts, Plaintiff was damaged in the amount of TEN MILLION (\$10,000,000.00) DOLLARS.

AS AND FOR A ELEVENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

64. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs.

65. Defendants' acts were reckless, willful, outrageous and outside the bounds of conduct tolerated in a civil society.

66. Plaintiff demands punitive damages in the amount of TWENTY MILLION (\$20,000,000.00) DOLLARS.

WHEREFORE, the Plaintiff demands:

- a. judgment awarding damages against each and every defendant in the First Cause of Action in the sum of \$10,000,000.00 (TEN MILLION DOLLARS) and exemplary damages in the punitive amount of \$20,000,000.00 (TWENTY MILLION DOLLARS)
- b. judgment against each and every defendant on each individual cause of action in the Second through (excluding the 12th) Eighteenth Causes of Action in the amount of TEN MILLION DOLLARS (\$10,000,000.00).

- c. judgment against each and every defendant on the TWELTH Cause of Action in the amount of (\$20,000,000.00) TWENTY MILLION DOLLARS;
- d. interest, attorneys fees, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: Bronx, New York
December 24th, 2015



AUBREY WARD, ESQ.
Attorney for Plaintiff
Abdullah Muhammad
400 East 161st Street
Bronx, New York 10451
Ph: (718) 676-6033
Fx: (718) 676-6034

To : Scott M. Stringer
Office of the New York City Comptroller
1 Centre Street
New York, New York 10007

NYPD
One Police Plaza
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ABDULLAH MUHAMMAD,

Plaintiff(s),

-against-

STIPULATION TO
CHANGE VENUE

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. MATTHEW LUGHES, P.O. BRADLEY
KUCYK, P.O. ROBERT UHL, LIEUTENANT THOMAS
KELLY, AND P.O. JOHN DOSS 1-5 (the last Officers' names
being fictitious and presently unknown),

Index #: 303428/2015

Law Dept. #: 2016-003579

NO FEE

Defendant(s).

MAR 03 2016

IT IS HEREBY STIPULATED AND AGREED, by and among the undersigned
attorneys for the parties above-named, that the caption and place of trial of this action be amended and
changed from the Supreme Court, Bronx County, to the Supreme Court, New York County, pursuant to
Section(s) 504(3) of the Civil Practice Law and Rules.

IT IS FURTHER STIPULATED AND AGREED that the Bronx County Clerk's
Office shall transfer the file from Bronx County to New York County without costs to either party, and
that the New York County Clerk's Office shall issue a new index number without costs to either party.

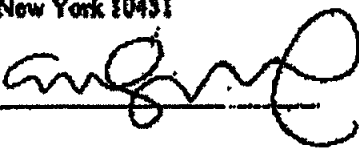
IT IS FURTHER STIPULATED AND AGREED, for purposes of this stipulation only,
including filing, a fully executed faxed copy may be deemed an original and facsimile signatures shall be
deemed as originals.

IT IS FURTHER STIPULATED AND AGREED that the undersigned attorney from
the office of the Corporation Counsel will file such signed stipulation with the clerk of the Court.

Dated: New York, New York
March 3, 2016

AUNKEY WARD, ESQ.
the attorney(s) for Plaintiff(s)
400 East 161st Street
Bronx, New York 10451

ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

By: 

By: 
STEPHANIE REVILLA

So Ordered:

Date:

16 MAR -3 PM 2016
COUNTY CLERK
BRONX COUNTY

RECEIVED